

THE LAND ACQUISITION (AMENDMENT AND VALIDATION) ACT, 1967

ARRANGMENT OF SECTIONS

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1. Short title.
2. [*Omitted.*].
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4. Validation of certain acquisitions.
5. Repeal and saving.

IndiaCode

THE LAND ACQUISITION (AMENDMENT AND VALIDATION) ACT, 1967

ACT NO. 13 OF 1967

[12th April, 1967.]

An Act further to amend the Land Acquisition Act, 1894, and to validate certain acquisitions of land under the said Act.

BE it enacted by Parliament in the Eighteenth Year of the Republic of India as follow: —

1. Short title.—This Act may be called the Land Acquisition (Amendment and Validation) Act, 1967.

2. [Amendment of section 5A.] *Omitted by Repealing and Amending Act, 1974 (56 of 1974), s. 2 and the First Schedule (w.e.f. 20-12-1974).*

3. [Amendment of section 6.] *Omitted by s. 2 and the First Schedule, ibid. (w.e.f. 20-12-1974).*

4. Validation of certain acquisitions.—(1) Notwithstanding any judgment, decree or order of any court to the contrary, —

(a) no acquisition of land made or purporting to have been made under the principal Act before the commencement of the Land Acquisition (Amendment and Validation) Ordinance, 1967 (1 of 1967), and no action taken or thing done (including any order made, agreement entered into, or notification published) in connection with such acquisition shall be deemed to be invalid or ever to have become invalid merely on the ground—

(i) that one or more Collectors have performed the functions of Collector under the principal Act in respect of the land covered by the same notification under sub-section (1) of section 4 of the principal Act;

(ii) that one or more reports have been made under sub-section (2) of section 5A of the principal Act, whether in respect of the entire land, or different parcels thereof, covered by the same notification under sub-section (1) of section 4 of the principal Act;

(iii) that one or more declarations have been made under section 6 of the principal Act in respect of different parcels of the land covered by the same notification under sub-section (1) of section 4 of the principal Act;

(b) any acquisition in pursuance of any notification published under sub-section (1) of section 4 of the principal Act before the commencement of the Land Acquisition (Amendment and Validation) Ordinance, 1967 (1 of 1967), may be made after such commencement and no such acquisition and no action taken or thing done (including any order made, agreement entered into, or notification published), whether before or after such commencement, in connection with such acquisition shall be deemed to be invalid merely on the ground referred to in clause (a) or any of them.

(2) Notwithstanding anything contained in clause (b) of sub-section (1), no declaration under section 6 of the principal Act in respect of any land which has been notified before the commencement of the Land Acquisition (Amendment and Validation) Ordinance, 1967 (1 of 1967), under sub-section (1) of section 4 of the principal Act, shall be made after the expiry of two years from the commencement of the said Ordinance.

(3) Where acquisition of any particular land covered by a notification under sub-section (1) of section 4 of the principal Act, published before the commencement of the Land Acquisition (Amendment and Validation) Ordinance, 1967 (1 of 1967), is or has been made in pursuance of any declaration under section 6 of the principal Act, whether made before or after such commencement, and such declaration is or has been made after the expiry of three years from the date of publication of such notification, there shall be paid simple interest, calculated at the rate of six per centum per annum on the market value of such land,

as determined under section 23 of the principal Act, from the date of expiry of the said period of three years to the date of tender of payment of compensation awarded by the Collector for the acquisition of such land:

Provided that no such interest shall be payable for any period during which the proceedings for the acquisition of any land were held up on account of stay or injunction by order of a court:

Provided further that nothing in this sub-section shall apply to the acquisition of any land where the amount of compensation has been paid to the persons interested before the commencement of this Act.

5. Repeal and saving.—(1) The Land Acquisition (Amendment and Validation) Ordinance, 1967 (1 of 1967), is hereby repealed.

(2) Notwithstanding such repeal, anything done or any action taken under the principal Act as amended by the said Ordinance shall be deemed to have been done or taken under the principal Act as amended by this Act as if this Act had come into force on the 20th day of January, 1967.